

25SMCV00577 25SMCV00577

County: los-angeles

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The matter is here on a motion to disqualify defense counsel. The motion is DENIED. The grounds are one attorney representing defendant is her brother and the other is her husband, and that they therefore have a conflict. That is not cause for disqualification. While it is true that the husband might have a financial interest in the outcome of the case, that is not disqualifying (in that it can be waived) and not something that the other side really has standing to raise. The court has reviewed correspondence in this case, and the court must agree with plaintiff that counsel for the defense does seem to be embroiled in the litigation to the point where communications have not been professional or civil. That needs to stop and stop now. If counsel cannot approach this case as professionals, then it might well be that defendant would be well served to obtain counsel that can. The court has confidence that on a going forward basis, all counsel will engage with one another in a manner consistent with the Los Angeles Superior Court's Guidelines on Civility, appended to the local rules. However, as stated above, there are no grounds for disqualification and the motion is DENIED. The court is aware that it has the power to disqualify counsel if counsel is so embroiled in the litigation that it threatens the legitimacy of the proceedings. There has been no showing that defense counsel's lack of civility has risen to that level—yet.